

# An Act

ENROLLED SENATE  
BILL NO. 1246

By: Rader of the Senate

and

Pfeiffer of the House

An Act relating to the Oklahoma Environmental Quality Code; amending 27A O.S. 2021, Sections 2-14-103, 2-14-301, 2-14-302, 2-14-303, and 2-14-304, which relate to the Oklahoma Uniform Environmental Permitting Act; modifying definitions; modifying requirements and procedures for certain notifications; requiring certain information be made available online; modifying time frame for which certain meetings are held; modifying time frame for which certain response is prepared; modifying provisions for certain administrative hearing; updating statutory language; updating statutory reference; and providing an effective date.

SUBJECT: Environmental permitting

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 27A O.S. 2021, Section 2-14-103, is amended to read as follows:

Section 2-14-103. For the purposes of the Oklahoma Uniform Environmental Permitting Act:

1. "Application" means a document or set of documents, filed with the Department of Environmental Quality for the purpose of receiving a permit or the modification, amendment, or renewal thereof from the Department. ~~"Application"~~ Application includes any subsequent additions, revisions, or modifications submitted to the

Department which supplement, correct, or amend a pending application;

2. "Council" means any advisory council authorized by the Legislature to recommend rules to the Environmental Quality Board;

3. "Draft permit" means a draft document prepared by the Department after it has found a Tier II or III application for a permit to be administratively and technically complete, pursuant to the requirements of the Oklahoma Environmental Quality Code and rules promulgated thereunder, and that such application may warrant the issuance, modification, or renewal of the permit;

4. "Permit" means a permission required by law and issued by the Department, the application for which has been classified as Tier I, II, or III by the Board. The term "permit" includes but is not limited to:

- a. specific types of permits and other Department authorizations including certifications, registrations, licenses, and plan approvals, and
- b. an approved variance from a promulgated rule; however, for existing facilities the Department may require additional notice and public participation opportunities for variances posing the potential for increased risk;

5. "Process meeting" means a meeting open to the public which is held by the Department to explain the permitting process and the public participation opportunities applicable to a specific Tier III application;

6. "Proposed permit" means a document, based on a draft permit and prepared by the Department after consideration of comments received on the draft permit, which indicates the Department's decision to issue a final permit pending the outcome of an administrative permit hearing, if any;

7. "Qualified interest group" means any organization with twenty-five or more members who are ~~Oklahoma~~ residents of this state;

8. "Response to comments" means a document prepared by the Department after its review of timely comments received on a draft denial or draft permit pursuant to public comment opportunities which:

- a. specifies any provisions of the draft permit that were changed in the proposed or final permit and the reasons for such changes, and
- b. briefly describes and responds to all significant comments raised during the public comment period or formal public meeting about the draft denial or draft permit;

9. "Tier I" means a basic process of permitting which includes application, notice to the landowner, and Department review. For the Tier I process a permit shall be issued or denied by a technical supervisor of the reviewing Division, a local representative of the Department, or the chief engineer of the Department provided such authority has been delegated thereto by the Executive Director;

10. "Tier II" means a secondary process of permitting which includes:

- a. the Tier I process,
- b. published notice of application filing that contains information on how the public may view documents, subscribe to updates, and receive electronic notice of public participation opportunities related to the pending application and agency decision,
- c. preparation of draft permit or draft denial,
- d. ~~published notice~~ electronic notification and publication of draft permit or draft denial on the Electronic Environmental Permit Application Docket on the Department's website and opportunity for a formal public meeting, ~~and~~
- e. public meeting, if any, and

- f. preparation of the Department's response to comments, if any.

For the Tier II process, a permit shall be issued or denied by the Director of the reviewing Division or the chief engineer of the Department provided such authority has been delegated thereto by the Executive Director; and

11. "Tier III" means an expanded process of permitting which includes:

- a. the Tier II process except the notice of filing shall also include an opportunity for a process meeting,
- b. ~~preparation of the Department's response to comments, and~~
- c. ~~denial of application or preparation of a proposed permit, or~~
- d. ~~preparation of a proposed permit, published notice of availability of proposed permit and response to comments and of opportunity for an administrative permit hearing;~~
- e. electronic notification and publication of denial of application or proposed permit, response to comments, and opportunity for an administrative permit hearing on the Electronic Environmental Permit Application Docket on the Department's website, and
- f. administrative permit hearing, if any.

For the Tier III process a permit shall be issued or denied by the Executive Director.

SECTION 2. AMENDATORY 27A O.S. 2021, Section 2-14-301, is amended to read as follows:

Section 2-14-301. A. Upon In addition to any other notification requirement imposed by law, upon filing a Tier II or

III application with the Department of Environmental Quality, the applicant shall publish notice of the filing as legal notice in one newspaper of general circulation local to the proposed new site or existing facility once a week for two (2) consecutive weeks. The publication shall ~~identify locations where the application may be reviewed, including a location in the county where the proposed new site or existing facility is located~~ direct the public to the Electronic Environmental Permit Application Docket on the Department's website where the public may view documents related to the pending application and subscribe to receive electronic notice of public participation opportunities and receive updates on other actions related to the pending application. The Department shall maintain documents related to the pending application on the Electronic Environmental Permit Application Docket on the Department's website until the decision on issuance or denial of any pending permit application becomes final.

B. For Tier III applications, the publication shall also include notice of a thirty-day opportunity to request, or give the date, time and place for, a process meeting on the permitting process. If the Department receives timely request and determines that a significant degree of public interest in the application exists, it shall schedule and hold such meeting. The applicant shall be entitled to attend the meeting and may make a brief presentation on the permit request. Any local community meeting to be held by the applicant on the proposed facility or activity for which a permit is sought may, with the agreement of the Department and the applicant, be combined with the process meeting authorized by this ~~paragraph~~ subsection.

C. The provisions of this section shall not stay the Department's review of the application.

SECTION 3. AMENDATORY 27A O.S. 2021, Section 2-14-302, is amended to read as follows:

Section 2-14-302. A. Upon conclusion of its technical review of a Tier II or III application within the permitting ~~timeframes~~ time frames established by rules promulgated by the Environmental Quality Board, the Department of Environmental Quality shall prepare a draft denial or draft permit.

1. Notice of a draft denial or draft permit shall be given by the Department ~~and notice of a draft permit shall be given by the applicant on the Department's website.~~

2. Notice of the draft denial or draft permit shall be ~~published as legal notice in one newspaper local to the proposed new site or existing facility. The notice shall identify places where the draft denial or draft permit may be reviewed, including a location in the county where the proposed new site or existing facility is located, and shall provide for a set time period for public comment and for the opportunity to request a formal public meeting on the respective draft denial or draft permit posted on the Electronic Environmental Permit Application Docket on the Department's website and provided to the applicant and those who subscribed to receive notifications. The notice shall provide for a set time period for public comment and for the opportunity to request a formal public meeting on the respective draft denial or draft permit.~~ Such time period shall be set at thirty (30) days after the date the notice is ~~published~~ posted unless a longer time is required by federal regulations promulgated as rules by the Board. In lieu of the notice of opportunity to request a public meeting, notice of the date, time, and place of a public meeting may be given, if previously scheduled.

B. Upon the ~~publication of notice~~ notification of a draft permit, the ~~applicant~~ Department shall make the draft permit and the application, except for proprietary provisions otherwise protected by law, available for public review ~~at a location in the county where the proposed new site or existing facility is located on the Electronic Environmental Permit Application Docket on the Department's website.~~

SECTION 4. AMENDATORY 27A O.S. 2021, Section 2-14-303, is amended to read as follows:

Section 2-14-303. The Department of Environmental Quality shall expeditiously schedule and hold a formal public meeting if the Department receives written timely request for such meeting, pursuant to the provisions of Section 2-14-302 of this title, and determines there is a significant degree of public interest in the draft denial or draft permit.

1. Notice of the meeting shall be ~~given to the public~~ posted on the Electronic Environmental Permit Application Docket on the Department's website and provided to the applicant and those who subscribed to receive notifications at least thirty (30) days prior to the meeting date.

2. The public meeting shall be held at a location convenient to and near the proposed new site or existing facility not more than ~~one hundred twenty (120)~~ seventy-five (75) days after the date notice of the draft denial or draft permit was ~~published~~ issued unless the applicant requests a longer period to prepare for the public meeting.

3. At the meeting, any person may submit oral or written statements and data concerning the draft denial or draft permit. Reasonable limits may be set upon the time allowed for oral statements.

4. The public comment period shall automatically be extended to the close of the public meeting. Upon good cause shown, the presiding officer may extend the comment period further to a date certain by so stating at the meeting.

5. Such meeting shall not be a quasi-judicial proceeding.

6. The applicant or a representative of the applicant shall be present at the meeting to respond to questions.

SECTION 5. AMENDATORY 27A O.S. 2021, Section 2-14-304, is amended to read as follows:

Section 2-14-304. A. For draft permits or draft denials for Tier II applications on which no comment or public meeting request was timely received and on which no public meeting was held, the final permit shall be issued or denied.

B. For draft permits or draft denials for Tier II applications on which comment or a public meeting request was timely received or on which a public meeting was held, the Department of Environmental Quality, after considering the comments, shall prepare a response to comments and issue the draft permit as is or as amended or make final denial.

The response to comments shall be prepared within ~~ninety (90)~~ forty-five (45) days after the close of the public comment period unless extended by the Executive Director upon a determination that additional time is required due to circumstances outside the control of the Department. Such circumstances may include, but shall not be limited to, an act of God, a substantial and unexpected increase in the number of applications filed, an unusually large number of public comments, unusually lengthy public comments that require extensive technical responses, additional review duties imposed on the Department from an outside source, or outside review by a federal agency.

C. For a draft permit or draft denial for a Tier III application, after the public comment period and the public meeting, if any, the Department shall ~~prepare a response to comments and~~ either issue a final denial in accordance with paragraph 2 of this subsection or prepare a proposed permit.

1. When a proposed permit is prepared, the ~~applicant~~ Department shall ~~publish post notice, as legal notice in one newspaper local to the proposed new site or existing facility, of the Department's tentative decision to issue the permit~~ on the Electronic Environmental Permit Application Docket on the Department's website and provide notice to the applicant and those who subscribed to receive notifications on the permit application. Such notice shall identify the places where the proposed permit and the Department's response to comments may be reviewed, ~~including a location in the county where the proposed new site or existing facility is located~~ and shall offer a twenty-day opportunity to request an administrative hearing to participate in as a party. The opportunity to request a hearing shall be available to the applicant and any person or qualified interest group who claims to hold a demonstrable environmental interest and who alleges that the construction or operation of the proposed facility or activity would directly and adversely affect such interest.

If no written administrative hearing request is received by the Department by the end of twenty (20) days after the ~~publication~~ date of the notice, the final permit shall be issued.



2. If the Department's final decision is to deny the permit, it shall give notice to the applicant and issue a final denial in accordance with subsection F of this section.

D. When an administrative hearing is timely requested on a proposed permit in accordance with subsection C of this section, all timely requests shall be combined in a single hearing. The hearing shall be a quasi-judicial proceeding and shall be conducted by an ~~Administrative Law Judge~~ administrative law judge in accordance with Article 2 of the Administrative Procedures Act, the Oklahoma Environmental Quality Code and rules promulgated by the Environmental Quality Board.

1. The applicant shall be a party to the hearing.

2. The Department shall ~~schedule~~ hold a prehearing conference within ~~sixty (60)~~ forty-five (45) days after the end of the hearing request period.

3. The Department shall move expeditiously to an evidentiary proceeding in which parties shall have the right to present evidence before the Department on whether the proposed permit and the technical data, models and analyses, and information in the application upon which the proposed permit is based are in substantial compliance with applicable provisions of the Code and rules promulgated thereunder and whether the proposed permit should be issued as is, amended and issued, or denied.

4. Failure of any party to participate in the administrative proceeding with good faith and diligence may result in a default judgment with regard to that party; provided, however, that no final permit shall be issued solely on the basis of any such judgment.

E. If the Department decides to reverse its initial draft decision, it shall withdraw the draft denial or draft permit and prepare a draft permit or draft denial, as appropriate. Notice of the withdrawal of the original draft and preparation of the revised draft shall be given as provided in Section 2-14-302 of this title. The Department shall then ~~re-open~~ reopen the comment period and provide additional opportunity for a formal public meeting on the revised draft as described in Section 2-14-303 of this title.

F. Upon final issuance or denial of a permit for a Tier III application, the Department shall provide ~~public notice~~ notification of the final permit decision and the availability of the response to comments, if any.

G. Any appeal of a Tier III final permit decision or any final order connected therewith shall be made in accordance with the provisions of the Code and the Administrative Procedures Act.

H. Any applicant, within ten (10) days after final denial of the application for a new original permit on which no final order was issued, may petition the Department for reconsideration on the grounds stated in subsection A of Section 317 of Title 75 of the Oklahoma Statutes as if the denial was an order. Disposition of the petition shall be by order of the Executive Director according to subsections B and D of Section 317 of Title 75 of the Oklahoma Statutes.

SECTION 6. This act shall become effective November 1, 2026.

Passed the Senate the 10th day of March, 2026.

\_\_\_\_\_  
Presiding Officer of the Senate

Passed the House of Representatives the 30th day of April, 2026.

\_\_\_\_\_  
Presiding Officer of the House  
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this \_\_\_\_\_

day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.

By: \_\_\_\_\_

Approved by the Governor of the State of Oklahoma this \_\_\_\_\_

day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.

\_\_\_\_\_  
Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this \_\_\_\_\_

day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.

By: \_\_\_\_\_